



Appeal Decision

Site visit made on 18 June 2026 by J Kirkaldy BSc (Hons) PGDip MRTPI

Decision by L McKay MA MRTPI

an Inspector appointed by the Secretary of State

Decision date: 4th September 2026

Appeal Ref: 6008745

Old Bean Cottage, Shellbank Lane, Bean, Kent DA2 8AX

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr Mojeed Odugbayi against the decision of Dartford Borough Council.
 - The application Ref is DA/26/00160/FUL.
 - The development proposed is for erection of part single/part double storey side extensions.
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Decision

1. The appeal is dismissed.

Appeal Procedure

2. The site visit was undertaken by a representative of the Inspector whose recommendation is set out below and to which the Inspector has had regard before deciding the appeal.

Procedural Matter

3. The most recent iteration of the National Planning Policy Framework (the Framework) was published in August 2026. With regard to the main issues of the appeal, the relevant policies are not materially different from the previous iteration of the Framework. I am therefore satisfied that I can proceed without further consultation with the main parties since, with the above in mind, their respective cases would not be prejudiced.

Main Issues

4. The main issues are:
 - whether the proposal would be inappropriate development in the Green Belt having regard to the Framework and any relevant development plan policies;
 - the effect of the proposal on the openness and purposes of the Green Belt; and
 - whether any harm by reason of inappropriateness, and any other harm, would be clearly outweighed by other considerations, so as to amount to the very special circumstances necessary to justify the development.

Reasons for the Recommendation

Whether inappropriate development

5. The Framework states that the objective of Green Belt policy is to prevent urban sprawl by keeping land permanently open.

6. Policy M12 of the Dartford Local Plan to 2037 (2024) (LP) requires extensions to be proportionate and subservient in appearance, bulk, massing and scale, and not result in a disproportionate addition to the original building.
7. Framework Policy GB6 1 sets out that development in the Green Belt is inappropriate other than in the case of specified exceptions. An exception in GB7 1.b is the extension or alteration of an existing building, providing that it will not result in a disproportionate size compared to the original building. For the purposes of the Framework, the original building is a building that existed on 1 July 1948 or, if constructed after 1 July 1948, as it was built originally.
8. Neither local policy or the Framework define what constitutes a disproportionate addition and therefore this is a matter of planning judgement. In assessing whether an addition is disproportionate, it is well established that a comparison should be made between the size of the original building and the cumulative size of the building as extended, including any previous extensions. However, this is not simply a mathematical calculation and other factors are also relevant.
9. The Council has calculated that the existing extensions to the dwelling have resulted in an increase in volume of approximately 93.5% when compared with the original dwelling. The proposal would add a further 13%. Whilst this additional increase is relatively modest when viewed in isolation, the proposal must be assessed in the context of the cumulative enlargement of the dwelling. Taken together with the existing extensions, the proposal would result in the dwelling being more than double the volume of the original dwelling.
10. The appellant has not challenged the Council's calculations or provided any alternative figures. Instead, they contend that the Council has placed undue weight on the cumulative increase in size rather than the limited scale of the proposal itself and that the proposal would not materially alter the scale or appearance and should be regarded as a proportionate addition. However, the comparison required by policy is with the original building, not the existing.
11. The above figures demonstrate that the original building has already undergone a substantial volumetric cumulative increase, and the proposal would add further to this built form. Although the property occupies a generous plot with an elevated position to the road, the proposal would increase its volume and add bulk at the first-floor level, notably increasing the scale and massing of the dwelling to the side of the property. As a result, despite the lower roof ridge and set back position, the proposal when combined with the existing extensions would not appear subservient to the original dwelling. Consequently, the proposal would constitute a disproportionate addition over and above the size of the original building and would not comply with Policy M12 of the LP or fall within the exception in Policy GB7 1.b of the Framework.
12. Policy GB7 g of the Framework sets out other circumstances where development in the Green Belt should also not be regarded as inappropriate, including where the development would utilise grey belt land, not fundamentally undermine the purposes of the remaining Green Belt across the area of the plan, and meet all of the other criteria in sections i. to iv.
13. The Framework defines grey belt as land in the Green Belt comprising previously developed land and/or any other land that, in either case, does not strongly contribute to any of the Green Belt purposes (a), (b), or (d) set out in Policy GB2.

The relevant Green Belt purposes are to check the unrestricted sprawl of large built-up areas, prevent neighbouring towns from merging, and preserve the setting and special character of historic towns.

14. The site comprises a single residential dwelling located on the edge of the village and therefore, would not make a strong contribution to Green Belt purposes (a), (b), or (d). As such, the site may meet the definition of grey belt land. However, even if criterion i. of GB7 g is satisfied, there is little detail or evidence before me to establish a need for the proposed development. Whilst I recognise that a larger dwelling may be desirable to the appellant, this does not, in itself, amount to evidence of a demonstrable unmet need. Therefore, criterion ii. of Policy GB7 g is not met.
15. The proposed extension would be sustainably located in relation to the existing dwelling and, therefore, criterion iii. is met. Nevertheless, as the policy requires all relevant criteria to be satisfied, the failure to meet criterion ii. means that the proposal does not comply with Policy GB7 g. Accordingly, the development cannot be regarded as not inappropriate development by reason of being grey belt land.
16. As such, the proposed development fails to meet any of the exceptions set out in Policy GB7 of the Framework and would therefore be inappropriate development, which is, by definition, harmful to the Green Belt and should not be approved except in very special circumstances.

Openness and purposes

17. The Framework explains that the essential features of Green Belts are their openness and their permanence. Openness has a spatial and visual aspect.
18. There is no dispute that the site does not contribute strongly to Green Belt purposes, and may be grey belt, however this does not weigh in favour of the proposal given that the other criteria required for grey belt are not met.
19. Due to their volume, the extensions would undoubtedly have a spatial effect on the openness of the Green Belt, however as it would only affect one property, the overall spatial effect would be limited. The proposal would be elevated from the road and only partially screened from public vantage points by existing trees and hedgerows along the road frontage. However, such vegetation cannot be relied upon to provide permanent screening, and the development would remain visible in glimpsed views from the road. Consequently, the proposal would have limited effect on the visual perception of openness. However, the fact that parts of the Green Belt are not readily visible does not in itself justify a reduction in openness since to do so would support a continual and cumulative loss. Overall, the proposal would result in limited harm to openness.
20. The Framework makes it clear that substantial weight should be given to the harm to the Green Belt, including harm to its openness. The harm to openness therefore adds to the harm as a result of inappropriateness.

Other Considerations

21. The appellant contends that the proposal would make more efficient use of the existing dwelling. However, the dwelling is already in residential use and there is no substantive evidence before me that the proposed additional accommodation is necessary to achieve an efficient use of the site. While the Framework states that

substantial weight should be given to the benefits of development proposals that meet one or more of the identified criteria in Policy L2, the proposal does not demonstrably fall within any of those categories, and therefore would not benefit from the weight offered by that Policy.

22. The Council has not identified harm with regard to the living conditions of nearby neighbouring occupiers, nor any issues relating to highway, parking provision, or the effect of the proposal on the character and appearance of the host dwelling and surrounding area. However, the lack of harm in these regards is a neutral matter and does not weigh in favour of the scheme.

Green Belt Balance and Recommendation

23. The proposal would be inappropriate development in the Green Belt, which is harmful by definition. No harm would arise to the Green Belt purposes however there would be a limited loss of openness which would be harmful to the Green Belt. The totality of the Green Belt harm attracts substantial weight. Very special circumstances will not exist unless the potential harm to the Green Belt by reason of inappropriateness, and any other harm resulting from the proposal, is clearly outweighed by other considerations. There are no other considerations to clearly outweigh the harm I have identified. Consequently, the very special circumstances necessary to justify the development do not exist and the proposal would fail to accord with the Green Belt aims set out in Policy M12 of the LP and the Framework.
24. For the reasons given, my above findings bring the proposal into conflict with the development plan, read as a whole. There are no material considerations, including the Framework to indicate a decision should be made otherwise than in accordance with it. Therefore, I recommend that the appeal should be dismissed.

J Kirkaldy

APPEAL PLANNING

Inspector's Decision

25. I have considered all the submitted evidence and my representative's report and on that basis the appeal is dismissed.

L McKay

INSPECTOR